

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE RAYMOND P. MOORE**

Courtroom Deputy: Cathy Pearson
Court Reporter: Tammy Hoffschidt

Date: February 11, 2019

CASE NO. 15-cv-02785-RM-NYW

STEVEN LEE BRANDT,
JAMES CLAY WALKER, and
COLORADO BOX COMPANY, INC.,

Ian Walsworth
Alyssa Sandrowitz
William Mauke

Plaintiffs,

v.

VON HONNECKE,
CHASE HONNECKE, and
S&H SHEET METAL, INC.,

Scott Terrell

Defendants.

COURTROOM MINUTES

JURY TRIAL – DAY 1

COURT IN SESSION: 8:45 a.m. Jury panel is not present

Court calls case. Appearances of counsel. Plaintiffs are present. Defendants are present.

Discussion held regarding preliminary matters.

Court in recess: 8:56 a.m.

Court in session: 9:19 a.m. Jury panel is present.

Introductory statements by the Court.

9:22 a.m. Jury panel is sworn on voir dire.

Voir dire by the Court.

Excused for cause:

1. 100347406

10:15 a.m. Voir dire by Mr. Walsworth.

10:19 a.m. Voir dire by Mr. Terrell.

Court in recess: 10:35 a.m.

Court in session: 10:51 a.m. Jury panel is present.

Voir dire continues.

11:17 a.m. Counsel exercise their peremptory challenges.

Plaintiff's Peremptory Challenges:

1. 100370220
2. 100343385
3. 100345857

Defendant's Peremptory Challenges:

1. 100358507
2. 100343066
3. 100370080

Eight jurors sworn to try the case:

1. 100371023
2. 100332152
3. 100366227
4. 100335226
5. 100375399
6. 100364256
7. 100339023
8. 100337505

11:30 a.m. Video is played, and the Court reads preliminary instructions to the jury.

12:08 a.m. Jury is excused.

Discussion held regarding Defendants' objection to slides to be used during Plaintiffs' opening statements.

ORDERED: Defendants' objections are sustained in part and overruled in part as stated on the record.

Court in recess: 12:16 p.m.

Court in session: 1:47 p.m. Jury is not present.

1:48 p.m. Jury is present.

1:49 p.m. Opening statements presented by Mr. Walsworth

2:37 p.m. Opening statements presented by Mr. Terrell.

Court in recess: 2:59 p.m.

Court in session: 3:12 p.m. Jury is not present.

Discussion held regarding witnesses.

3:17 p.m. Jury is present.

Plaintiffs' witness, Steven Lee Brandt, is sworn and examined by Mr. Walsworth.

Exhibits admitted: Plaintiffs' Exhibits 85, 88, 79, 18, 98, 105, 13.

4:24 p.m. Witness is excused. Cross-examination of Mr. Brandt is reserved, and a witness will be called out of order at this time.

4:25 p.m. Plaintiffs' witness, Tim Brooks, is sworn and examined by Mr. Walsworth. Witness is given the original transcript of his deposition taken on April 24, 2017.

4:40 p.m. Cross-examination of Tim Brooks by Mr. Terrell.

4:48 p.m. Redirect examination of Tim Brooks by Mr. Walsworth.

4:51 p.m. Jury is excused until 9:00 a.m. on February 12, 2019.

COURT IN RECESS: 4:51 p.m.

Total in court time: 5:41

Trial continued